

IN THE UNITED STATES DISTRICT COURT FOR
THE SOUTHERN DISTRICT OF TEXAS
HOUSTON DIVISION

MATTHEW MCCLENNON and
JUSTIN MCCLENNON

Plaintiffs,

v.

UNITED STATES OF AMERICA

Defendant.

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Civil Action No. _____

PLAINTIFFS' ORIGINAL COMPLAINT

Plaintiffs, MATTHEW MCCLENNON and JUSTIN MCCLENNON, file this Plaintiffs' Original Complaint against the UNITED STATES OF AMERICA, and would respectfully show the Court as follows:

I. JURISDICTION AND VENUE

1.1 This Court has subject matter jurisdiction over this action pursuant to the Federal Tort Claims Act, 28 U.S.C. § 1346(b)(1), which grants federal district courts exclusive jurisdiction over civil actions against the United States for money damages arising from the negligent or wrongful acts or omissions of its employees acting within the course and scope of their employment.

1.2 Venue is proper in this Court pursuant to 28 U.S.C. § 1402(b), because the acts or omissions giving rise to Plaintiffs' claims occurred in the Southern District of Texas, and Plaintiffs reside in this District.

II. ADMINISTRATIVE EXHAUSTION

2.1 Plaintiffs have complied with all administrative prerequisites to suit under the Federal Tort Claims Act, 28 U.S.C. § 2675(a).

2.2 Plaintiffs timely presented an administrative claim to the United States Postal Service by submitting a Standard Form 95, stating a sum certain for damages.

2.3 The claim was not finally resolved within six (6) months, and Plaintiffs have therefore exhausted all administrative remedies.

III. PARTIES

3.1 Plaintiff, Matthew McClennon, is an individual and resident of Richmond, Fort Bend County, Texas.

3.2 Plaintiff, Justin McClennon is an individual and resident of Houston, Harris County.

3.3 Defendant, the United States of America, is the proper Defendant under the Federal Tort Claims Act for Plaintiffs' claims arising from the alleged negligence of an employee of the United States Postal Service acting within the course and scope of his federal employment.

IV. FACTUAL BACKGROUND

4.1 On or about May 3, 2025, Plaintiffs Matthew McClennon and Justin McClennon were involved in a motor vehicle collision at the Chevron gas station located at 21903 Bellaire Boulevard in Richmond, Texas.

4.2. At the time of the incident, Plaintiff Matthew McClennon was seated inside a parked 2005 Honda Accord. Plaintiff Justin McClennon was in the process of exiting the vehicle.

4.3 At the same time and place, an employee of the United States Postal Service, acting within the course and scope of his employment with the United States, was operating a USPS vehicle in the parking lot.

4.4 The USPS employee attempted to pull into the parking space adjacent to Plaintiffs' vehicle. In doing so, he failed to properly control the USPS vehicle, failed to maintain a proper lookout, and drove the USPS vehicle into the passenger side of Plaintiffs' parked vehicle.

4.5 As a direct and proximate result of the USPS employee's negligence, Plaintiffs sustained personal injuries and damages.

4.6 Plaintiffs required medical treatment and incurred medical expenses as a result of the collision.

V. CAUSE OF ACTION

COUNT 1: NEGLIGENCE

5.1 The incident made the basis of this lawsuit was proximately caused by the negligence of an employee of the United States Postal Service, acting within the course and scope of his employment, in one or more of the following particulars:

- a. Failing to keep a proper lookout;
- b. Failing to properly control the vehicle;
- c. Failing to operate safely in a parking lot;
- d. Failing to maintain a safe distance/clearance; and
- e.; Striking a stationary/parked vehicle.

5.2 Each of the foregoing acts and omissions constitutes negligence, and each was a proximate cause of the occurrence and Plaintiffs' resulting injuries and damages.

5.3 Under the Federal Tort Claims Act, 28 U.S.C. §§ 1346(b) and 2674, the United States of America is liable for the negligent acts and omissions of its employees acting within the course and scope of their employment, to the same extent as a private person under the laws of the State of Texas.

5.4 Under Texas law, a private person would be liable for the conduct described herein. Accordingly, Defendant is liable to Plaintiff for damages, including personal injuries, medical expenses, property damage, and other recoverable losses.

VI. DAMAGES

6.1 As a direct and proximate result of the Defendant's employee's negligence, Plaintiffs have suffered and continue to suffer the following damages:

- a. Physical pain and suffering in the past and future.
- b. Physical impairment in the past and future.
- c. Medical expenses in the past and future.
- d. Property damage.

VII. PRAYER

7.1 Plaintiffs respectfully request that Defendant, the United States of America, be served and required to answer according to law, and that upon final trial, Plaintiffs recover damages in an amount to be determined at trial, together with:

- a. Costs of suit;
- b. Prejudgment interest at the rate prescribed by law until the date judgment is entered;

- c. Post-judgment interest as allowed by law from the date judgment is entered until paid;
- and
- d. All other relief to which Plaintiffs may be justly entitled.

Respectfully submitted,

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